

22PSCV00477 22PSCV00477

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Case Number: 22PSCV00477 Hearing Date: August 18, 2026 Dept: 6

CASE NAME: Amilkar Frausto v. Arch Telecom, Inc.

Motion for Preliminary Approval of Class Action Settlement

TENTATIVE RULING

The Court CONTINUES the hearing on the Motion for Preliminary Approval of Class Action Settlement for Plaintiff to file the First Amended Complaint and to address the following:

1. On July 28, 2026, Court entered the parties' stipulation and order granting Plaintiff leave to file a First Amended Complaint (FAC). The stipulation provided that Plaintiff would file the FAC within 10 days of the order. It has been more than 10 days since the Court entered the order for the parties' stipulation, and Plaintiff has not filed the FAC as of this tentative ruling. Given that the settlement is predicated on the consolidation of this action with Barajas v. Arch Telecom, Inc. pending in Superior Court of the State of California, County of San Bernadino, Case No. CIVSB2319797, and Narvaez v. Arch Telecom, Inc. pending in the Superior Court of the State of California, County of San Bernadino, Case No. CIVVS2400028, Plaintiff must file the FAC within five calendar days of this order.
2. The Gross Settlement Amount of \$875,000.00 is approximately 25% of the potential liability for exposure, which presents a significant discount. Provide further explanations regarding the estimated chances of prevailing on the various claims at issue, tying the discounts to the specific merits and certification risks. (See Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 803.)
3. Regarding attorney fees, provide a lodestar cross-check per Laffitte v. Robert Half Internat. Inc. (2016) 1 Cal.5th 480 since Plaintiffs' counsel seeks a percentage-based fee of the Gross Settlement Amount exceeding the 25% benchmark.
4. Provide itemized substantiation for the ceiling of \$120,000.00 in costs requested and documentation of actual costs incurred.
5. Amend the Class Notice to include the ceiling of \$120,000.00 in costs requested.
6. Provide more specific evidentiary support for the risks involved to each of the Plaintiffs to support their requested enhancement fee awards of \$10,000.00 each, which are approximately 43 times the average class recovery of \$231.54. Each Plaintiff must provide specific evidence of the risks involved; Plaintiff Amilkar Frausto's conclusory declaration of

“potential reputational and financial risk” is insufficient. (See Frausto Decl., ¶ 3; Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 805; see also Amaro v. Anaheim Arena Management, LLC (2021) 69 Cal.App.5th 521, 533 [\$10,000.00 enhancement award reduced to \$5,000.00 where the average payout was approximately \$231.67].)

7. The declarations of Plaintiffs Eddie Narvaez and Martin Barajas do not indicate consent to the fee-splitting arrangement between the parties' respective counsel. If they consent to this, they need to expressly provide their consent in writing. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Cal. Rules Prof. Conduct, rule 1.5.1, subd. (a)(2).)

8. Provide ILYM Group, Inc.'s qualifications and experience for settlement administration.

9. Indicate whether there will be a settlement website, and if so, provide the URL.

10. Provide a copy of each Plaintiff's notice letter to the LWDA.

11. Explain how notice of final judgment will be given to the Class. (Cal. Rules of Court, rule 3.771, subd. (b).)

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.